

elsewhere), the Court would sanction a sale to the trustee (*c*).

15. **Of executors, administrators, assignees, &c.** — The principles laid down with reference to *trustees for sale* are of course applicable to all who, though differing in name, are invested with the *like fiduciary character*, as executors and administrators (*d*), an executor in his own wrong (*e*), trustees for creditors (*f*), an agent (*g*), &c.; but a mortgagee may purchase from his mortgagor (*h*), surviving partners may purchase from the representatives of a deceased partner (*i*), [the trustee in the joint bankruptcy of surviving partners, who have a large claim against the estate of the deceased partner, may purchase from the representatives of the deceased partner (*j*),] and the creditor taking out execution is not precluded from becoming the purchaser of the property upon a sale by the sheriff (*k*); [and a person named as executor, but who, in fact, never proves the will, is not excluded from purchasing from the executor who proves (*l*).]

Secondly. As to the *terms* upon which the sale will be set aside.

[*491] * 1. **Cestui que trust may recover the specific estate.**

— The *cestui que trust*, if he chooses it, may have the specific estate reconveyed to him by the trustee (*a*), or,

(*c*) *Farmer v. Dean*, 32 Beav. 327.

(*d*) *Hall v. Hallet*, 1 Cox, 134; *Killick v. Flexney*, 4 B. C. C. 161; *Watson v. Toone*, 6 Mad. 153; *Kilbee v. Sneyd*, 2 Moll. 186; *Baker v. Carter*, 1 Y. & C. 250; and see *Naylor v. Winch*, 1 S. & S. 566.

(*e*) *Mulvany v. Dillon*, 1 B. & B. 408.

(*f*) *Ex parte Hughes*, 6 Ves. 617; *Ex parte Lacey*, Id. 625, and the cases cited Id. 630, note (*b*); *Ex parte Bennett*, 10 Ves. 395, *per* Lord Eldon; *Ex parte Reynolds*, 5 Ves. 707; *Ex parte James*, 8 Ves. 346, *per* Lord Eldon; *Ex parte Morgan*, 12 Ves. 6; *Ex parte Bage*, 4 Mad. 459; *Ex parte Badcock*, 1 Mont. & Mac. 231; *Pooley v. Quilter*, 2 De G. & J. 327.

(*g*) *King v. Anderson*, 8 I. R. Eq.

147, reversed *Ib.* 625; *Murphy v. O'Shea*, 2 Jon. & Lat. 422.

(*h*) *Knight v. Majoribanks*, 11 Beav. 322; 2 Mac. & G. 10.

(*i*) *Chambers v. Howell*, 11 Beav. 6. As to purchases by one partner under an execution against another partner, see *Perens v. Johnson*, 3 Sm. & G. 419.

[(*j*) *Boswell v. Coaks*, 23 Ch. D. 302; reversed on other grounds, 27 Ch. D. 424.]

(*k*) *Stratford v. Twynam*, Jac. 418.

[(*l*) *Clark v. Clark*, 9 App. Cas. 733.]

(*a*) See *Ex parte James*, 8 Ves. 351; *Ex parte Bennett*, 10 Ves. 400; *Lord Hardwicke v. Vernon*, 4 Ves. 411; *York Buildings' Company v. Mackenzie*, 8 B. P. C. 42.